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Google proposes to open Play Store to more real-money games in India



Google has proposed sweeping changes to its Play Store and advertising policies in India, aiming to allow more real-money gaming apps onto its platforms in a bid to settle an ongoing antitrust case with a local online gaming platform WinZO.

On Wednesday, India's competition watchdog issued a [public notice](#) (PDF) inviting comments on a “commitment proposal” from Google, offering to expand access to its Play Store and advertising policy for more real-money gaming apps in the South Asian market.

Google proposed to replace its current pilot program by allowing the distribution of all real-money games in the country — which are “self-declared by developers as permissible online real-money games as per applicable laws/jurisprudence” — on Google Play.

However, the developers are also required to submit proof that an authoritative third-party body has declared the app to be a “game of skill,” the company proposed.

In September 2022, Google [launched a pilot program](#) to allow daily fantasy sports and rummy games on its Play Store in India. The move came after a 2021 ruling by India's Supreme Court that categorized fantasy sports as “games of skill” rather than gambling — and therefore “legal.”

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Shortly after the pilot announced, online gaming platform WinZO [filed a complaint](#) with the Delhi High Court, calling the program discriminatory for excluding other real-money games. The Competition Commission of India (CCI) took up the case and, in November last year, [ordered a formal probe](#) into Google's policies for real-money gaming apps.

In January last year, Google announced it would expand support for real-money gaming apps on the Play Store in India, Brazil, and Mexico. However, the company [paused](#) that rollout in June 2024 and stated it would continue to allow apps already included in the 2022 India pilot to remain on the platform.

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Alongside offering to expand its Play Store for all real-money games self-declared by developers, Google proposed to update its Developer Program Policies to reflect the update. The company also

stated that it would finalize an “appropriate business model” for real-money game developers.

Similarly, Google has proposed to allow “games of skill” to be advertised in India where the app maker provides proof by a third party that it is a game of skill and not gambling.

The recognized third parties in this case could even be industry associations such as the All India Gaming Federation, E-Gaming Federation, or the Federation of Indian Fantasy Sports.

Google said it would begin allowing compliant real-money games on its Play Store in India within 120 days of the CCI’s approval, while related ad policy changes would take effect within 150 days of the regulator’s order.

“We’re pleased the CCI is market testing our proposed framework for real-money games (RMGs) in India,” a Google spokesperson said in a statement emailed to TechCrunch. “This development reflects our constructive discussions with the CCI and the Indian developer community along with our commitment to building a more open and safe ecosystem for RMG apps across Google Play and Google Ads.”

Notably, the proposal, if it is accepted by the CCI after public feedback, would benefit Google, which stands to earn a share of revenue from a broader range of real-money gaming apps and their ads on its platforms.

Real-money gaming dominates India’s online gaming market, accounting for nearly 86% of total industry revenue — ₹274.38 billion (\$3 billion) in 2024 — per a [joint report](#) by WinZO and the Interactive Entertainment and Innovation Council (IEIC) released earlier this year. However, its share is expected to decline slightly to 80% by 2029, as

non-real-money games grow in popularity and the overall market expands to ₹785.51 billion (\$8.9 billion).

Google’s latest proposal could also offer a boost to developers currently distributing their apps outside the Play Store — including via APK files on their own websites. However, the CCI’s investigation is still ongoing, and the regulator has yet to determine whether Google engaged in discriminatory practices in this space.

The probe adds to a growing list of antitrust challenges for Google in India, where the U.S.-headquartered tech giant [has already been fined](#) for [allegedly abusing its dominance](#) through Android and the Play Store. The company recently [approached the Supreme Court](#) to appeal one of these rulings and contest the CCI’s findings. The case is expected to be listed for hearing next month.

“We look forward to continuing to work with the CCI and the wider RMG ecosystem, and are confident our proposed framework will empower Indian developers, grow the digital economy, and prioritize user safety,” Google’s spokesperson said.

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Google pauses enforcement of Play Store billing requirement in India following antitrust order

Jagmeet Singh — 9:22 PM PDT · October 31, 2022

Google is indefinitely pausing the enforcement of its policy requiring developers to use Play Store's billing system for user transactions in India following an order by the country's antitrust body.

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The Android maker on Tuesday [updated](#) a support page to disclose the move and said that the requirement to use Google Play’s billing system still applies for in-app purchases outside of India.

Last week, the Competition Commission of India (CCI) [ordered](#) Google not to restrict app developers from using third-party payment processing services for in-app purchases and purchasing apps through the Play Store. The antitrust watchdog also fined the company \$113 million for abusing the dominant position of its Play Store in the country.

“Following the CCI’s recent ruling, we are pausing enforcement of the requirement for developers to use Google Play’s billing system for the purchase of digital goods and services for transactions by users in India,” the company said, adding that it is reviewing its legal options in the country, suggesting it may challenge the competition regulator’s decision.

Google had previously extended the deadline for following its Play Store billing requirement in the South Asian market until October 31.

The regulator announced its decision after interviewing a number of industry players and smartphone makers, including Samsung, Xiaomi and Microsoft. It had also slapped [another \\$162 million fine](#) on Google for anti-competitive practices related to Android.

Several other countries are [also apprehensive](#) of Google Play Store’s billing system, under which the company charges a commission to developers for processing payments. In response, Google is [testing alternative payment systems](#) for the Play Store in countries including India, South Korea, Australia and Japan.

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Jagmeet covers startups, tech policy-related updates, and all other major tech-centric developments from India for...

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Google temporarily restores Indian firms' apps on Play Store after regulatory intervention

Ivan Mehta — 7:10 PM PST · March 4, 2024

Update March 5, 4:30 p.m. IST: Google said that it is restoring all Indian firms' apps after both the Silicon Valley company and protesting firms met with India's IT Minister Ashwini Vaishnaw.

IMAGE CREDITS:

MAHOUNATH KIRAN / AFP / GETTY IMAGES

"In the spirit of cooperation, we are temporarily reinstating the apps of the developers with appeals pending in the Supreme Court. Google maintains its right to implement and enforce its business model, as established in various courts. We will invoice our full applicable service fees in the interim and are extending payment timelines for these companies. We look forward to a collaborative effort to find solutions that respect the needs of all parties," the company said in a statement.

Indian firms whose apps were [delisted by Google last week](#) have begrudgingly started to comply with

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Aisha Malik - 12 hours ago

Play Store billing rules to get their apps back on the store.

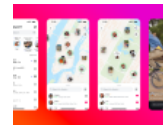
Apps like Shaadi, Matrimony.com and BharatMatrimony were restored after being removed from the Play Store Friday. Other apps to return include Info Edge's Naukri and 99acres, audio storytelling apps Kuku FM and Stage, Alt Balaji's Altt and dating service QuackQuack.

Google currently offers three options to developers for in-app purchases: Consumption-only model without paying a service fee (in which developers like Netflix only offer consumption to account holders); Google Play's billing system (in which the developer agrees to pay Google the long-standing fee of 15% or 30%); or offer an alternative billing system (in which the developer's fee to Google is reduced by roughly 4%). A lot of protesting developers have opted for a consumption-only model for now, while others have opted for the Google Play billing.

We are on the consumption model and back up <https://t.co/IuLJxpIDIM>

— Sanjeev Bikhchandani (@sbikh) [March 2, 2024](#)

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Instagram takes on Snapchat with new 'Instagram Map'

Aisha Malik - 17 hours ago

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The firms have also sought intervention from the government and India's antitrust watchdog. Over the weekend, IT Minister Ashwini Vaishnaw said that he [had engaged with Google](#) and was of the view that Google's action of delisting apps "can't be permitted." The affected developers are meeting with the minister today.

Lal Chand Bisu, co-founder and chief executive of Kuku FM, called out Google for offering preferential treatments to large companies like Spotify. Last year, during the Epic v Google trial in the U.S., the search giant admitted that Spotify pays no fees on Google Play for in-app purchases because of [a deal between the two companies](#).

This is so unfair. Google is using a divide-and-rule strategy here. They are talking to some companies to settle for less Google tax. They have already done a secret deal with Spotify where Spotify is not paying any Google tax. Many big companies still do not comply with Google...

— Lal Chand Bisu (@lcbisu) [March 2, 2024](#)

Distribution problem for developers

Last month, at an event where [Walmart-backed PhonePe launched an alternative app store](#), startups pointed out that they have to spend a lot of marketing money to drive installs and Google's fees are an extra burden on the business.

On Monday, Shaadi.com founder Anupam Mittal echoed this sentiment and said companies lose a

huge chunk of their revenues because of Google's fee structure.

The core issue stems from Apple & Google's attempts to move the open Internet to a closed app ecosystem where they can lord over the Internet economy. They have already succeeded in muscling large swathes of the Internet and now want 100% dominance.

Current issue – Google wants...

— Anupam Mittal (@AnupamMittal) [March 4, 2024](#)

While alternative app stores are allowed on Android, they have failed to reach a massive scale. For instance, Aptoid told TechCrunch last month that it drives [half a billion downloads a year from all over the world](#). In India, PhonePe's newly launched Indus App Store is at a nascent stage and might not provide a sufficient distribution platform for apps.

In an interview with [the Hindustan Times](#), Murugavel Janakiraman, chief executive of BharatMatrimony, said that sideload is not a viable option for the company as it has more than 150 apps on the Play Store.

“We can't offer them via sideloading because most people go to the Play Store to download apps. And what about alternate app stores like the recently launched Indus app store from PhonePe?” Janakiraman told the publication.

Google's argument

Google has held its ground saying that the company has provided multiple options to developers to comply with its rules. The search giant said that fewer than 60 developers in India are subject to fees above 15%.

“While we always try to work with developers to help them through our policies and find feasible solutions, allowing this small group of developers to get differential treatment from the vast majority of developers who are paying their fair share creates an uneven playing field across the ecosystem and puts all other apps and games at a competitive disadvantage,” the company said in [a blog post on Friday](#).

Google also noted that the company has given developers three years to comply with Play Store rules. Plus, it said that Google gave developers a grace period of three weeks after [the Supreme Court declined the plea from protesting firms](#) to prevent Google from taking action against them.

Firms seeking regulatory action

The firms that are protesting against Google’s move are looking for regulatory intervention. Info Edge co-founder Sanjeev Bikchandani, whose firm makes apps like Naukri for job seeking and 99Acres for property listing, has asked the Competition Commission for India (CCI) to take action against Google.

On March 5, IT Minister Vaishnaw said that Google has agreed to to relist all the apps that were removed earlier in the month.

[#WATCH](#) | Union Minister of Electronics & IT, Ashwini Vaishnaw, says "Google and start-up company, both have met with us. We have had very constructive discussions and finally, Google has agreed to list all the Apps as on the status which was there on Friday morning (1st March),... pic.twitter.com/IyXJu9XeK4

— ANI (@ANI) [March 5, 2024](#)

Snehil Khanor, co-founder and CEO of dating service TrulyMadly, along with [other founders](#), [argued](#) that Google hasn't complied with an earlier CCI's ruling to let developers use a third-party billing system.

CCI passed an order in October 2022, clearly stating that Google can not restrict all developers for using third party billing systems but google chose to balantly disobey their direct order.
[#EvilGoogle](#) pic.twitter.com/7aNLV2pBcG

— Snehil Khanor (@snehilkhanor) [March 1, 2024](#)

The Internet and Mobile Association of India (IAMAI), an industry association representing the largest Indian startups as well as international firms, said that it was “deeply concerned” by Google’s move to delist apps.

According to a report by Reuters, [Indian startups wrote to CCI on March 1](#), asking the antitrust body to intervene and ask Google to restore apps that haven't been restored.

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Ivan Mehta



Ivan covers global consumer tech developments at TechCrunch. He is based out of India and has previously...

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